

**Court No. - 32**

**Case :-** WRIT - C No. - 38946 of 2015

**Petitioner :-** Girish Kumar Agarwal

**Respondent :-** State Of U.P. & 4 Others

**Counsel for Petitioner :-** Shailendra Garg

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Rakesh Tiwari,J.**

**Hon'ble Mukhtar Ahmad,J.**

Supplementary affidavit filed today is taken on record.

As prayed, put up on 29.07.2015. In the meantime, learned counsel appearing for the Electricity Department will obtain instructions in the matter.

**Order Date :-** 21.7.2015

RCT/-

**Court No. - 32**

**Case :-** WRIT - C No. - 38946 of 2015

**Petitioner :-** Girish Kumar Agarwal

**Respondent :-** State Of U.P. & 4 Others

**Counsel for Petitioner :-** Shailendra Garg

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Rakesh Tiwari,J.**

**Hon'ble Mukhtar Ahmad,J.**

Learned counsel for the petitioner submits that he has paid electricity bill of the shop in dispute during the period he was in possession over it but thereafter he has vacated the shop and handed over its possession to the landlord who put in on rent to a subsequent tenant.

Sri Mahboob Ahmad, learned counsel appearing for power corporation submits that he wants some time to file counter affidavit in the matter.

Let a counter affidavit be filed within three weeks. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List after expiry of aforesaid period.

Till the next date of listing operation of recovery certificate dated 27.1.2015 issued by respondent no. 2 shall remain stayed.

**Order Date :-** 29.7.2015

M.A.Ansari

**Court No. - 32**

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**Counsel for Petitioner :-** Shailendra Garg

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Rakesh Tiwari,J.**

**Hon'ble Mukhtar Ahmad,J.**

List after two weeks.

Till then interim order granted earlier shall remain in operation.

**Order Date :-** 7.9.2015

Fhd.

**Court No. - 39**

**Case :-** WRIT - C No. - 38946 of 2015

**Petitioner :-** Girish Kumar Agarwal

**Respondent :-** State Of U.P. & 4 Others

**Counsel for Petitioner :-** Shailendra Garg

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Dilip Gupta,J.**

**Hon'ble Mukhtar Ahmad,J.**

List in the second week of January 2016.

Interim order, granted earlier, shall continue till the next date of listing.

**Order Date :-** 1.12.2015

Akram

(Dilip Gupta,J.)

(Mukhtar Ahmad,J. )

**Court No. - 34**

**Case :-** WRIT - C No. - 38946 of 2015

**Petitioner :-** Girish Kumar Agarwal

**Respondent :-** State Of U.P. & 4 Others

**Counsel for Petitioner :-** Shailendra Garg

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Sudhir Agarwal,J.**

**Hon'ble Ajit Kumar,J.**

1. In the instant writ petition, petitioner has prayed for a writ of certiorari quashing recovery certificate dated 27.01.2015 and also mandamus commanding respondents not to take any coercive action in pursuance to aforesaid recovery certificate. Petitioner has also prayed for disposal of his representation cum objections dated 04.07.2015 by respondents-2 and 3 which according to him pending consideration.

2. We find that recovery certificate has been issued to petitioner on the basis of demand made by Executive Engineer towards dues of electricity charges. Against such demand petitioner has efficacious statutory alternative remedy before District Grievance Redressal Forum under U.P. Electricity Supply Code, 2005. If there is any assessment on account of theft or unauthorized use of electricity, the petitioner has statutory remedy of appeal under Section 127 of Electricity Act, 2003.

3. Accordingly, we hold that there is alternative remedy and petitioner can approach appropriate alternative Forum for redressal of grievance. In view of above, we do not find any good ground to interfere with recovery proceedings. Petitioner has efficacious alternative remedy available in law. Writ petition is accordingly dismissed on the ground of alternative remedy.

4. No order as to costs.

**Order Date :-** 29.11.2017

S. Thakur